

As to Sanctions, it is denied.

CCP §2030.290(b) provides that if a party fails to respond to an interrogatory request “[t]he party propounding the interrogatories may move for an order compelling response to the interrogatories.” (CCP §2030.290.)

The declaration of City’s counsel reflects that responses to the discovery were not served. Further, the meet and confer letter attached to the declaration reflects that after the alleged responses were mailed, City was inquiring when responses would be provided, which validates the City’s position that responses were never received. The opposition to the motion fails to provide any evidence to the contrary. Accordingly, the court grants the motion to compel responses to Special Interrogatories (Set One) numbers 1 – 35.

There is no provision in the discovery code for compelling a party to respond to RFAs, rather, the code provides that if the party to whom the requests are directed fails to timely respond, the “requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for a monetary sanction....” (CCP §2033.280(b).) Nor does Defendant cite any specific provision that gives this court authority to compel response to RFAs. Rather, Plaintiff’s only recourse was a motion to deem admissions admitted, pursuant to CCP §2033.280, which is cited by Plaintiff in its motion.

SANCTIONS

CCP §2030.290(c), provides in pertinent part that “[t]he court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP §2030.290(c).) Here, City failed to file a reply (although there is no Proof of Service indicating the opposition was served on City) addressing Defendant’s allegations that responses were served. Therefore, the court concludes that other circumstances make the imposition of a sanction unjust.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2504921	CORONA NORCO UNIFIED SCHOOL DISTRICT vs SCHINDLER ELEVATOR CORPORATION	MOTION FOR LEAVE TO INTERVENE

Tentative Ruling: Intervenors Michele Adkins and Donna Penaranda’s Motion for Leave to Intervene is granted; Intervenors must file their Complaint in intervention within 20 days of this ruling.

Labor Code §3853 provides that if either the employee or the employer brings a workers' compensation subrogation action against a third person, "the other [employee or employer] may, at any time before trial on the facts, join as party plaintiff or shall consolidate his action, if brought independently." (Labor Code §3853.)

A complaint in intervention filed by an employee is timely even when filed after the expiration of the statute of limitations if the employers complaint was filed within the applicable limitations period. (See *Home Ins. Co. v. Southern Cal. Rapid Transit District* (1987), 196 Cal.App.3d 522). Intervenors assert that Plaintiff Corona Norco Unified School District filed their complaint within the statute of limitations.

A motion to intervene must be accompanied by a proposed complaint in intervention. (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2022) §2:443.) Intervenors properly submitted their proposed complaint in intervention alleging a single cause of action for negligence against Defendant Schindler arising out of the same injuries at issue in Plaintiff's subrogation action.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2506170	QUTAMI vs ALHARBI BROTHERS, INC.	DEMURRER ON 2ND AMENDED COMPLAINT
CVRI2506170	QUTAMI vs ALHARBI BROTHERS, INC.	MOTION TO STRIKE 2ND AMENDED COMPLAINT

Tentative Ruling: Defendant Alharbi Brothers, Inc.'s Demurrer is sustained in its entirety with 20 days leave to amend.

Defendant Alharbi Brothers, Inc.'s Motion to Strike is granted as to prayer only; denied as to the remainder.

REQUESTS FOR JUDICIAL NOTICE

Defendant requests judicial notice of: (1) The Order Granting Petition to Confirm Arbitration Award and Entry of Judgment, entered on 3/17/25, in Alharbi Brothers, Inc. v. Corona Town Farmers Market, Inc. et al. (CVRI 2300681) (RJN Ex. A); and (2) the Cross-Complaint in *Fruiticana, Inc. v. Ahmad F. Qutami et al.* (CVRI 2404120) (*Id.*, Ex. B.) Both are court records. Evid. Code section 452(d).

DEMURRER

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc. § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly